



CHAPTER xii.

An Act to increase the maximum rates dues tolls and charges leviable by the Bristol Corporation in respect of their dock undertaking and for other purposes.

A.D. 1919.

[29th May 1919.]

WHEREAS the lord mayor aldermen and burgesses of the city of Bristol (in this Act referred to as "the Corporation") are the owners of a dock undertaking within the said city consisting of certain docks known respectively as the City Docks the Avonmouth Docks and the Portishead Docks and of certain railways and works in connexion therewith respectively:

And whereas the rates dues tolls and charges which the Corporation may levy and charge in respect of vessels and goods and of various other matters and things and of various services rendered by them in connexion with their said dock undertaking are for the most part limited by the Bristol Dock Acts 1848 to 1918 or some or one of those Acts and the Acts incorporated with or referred to in those Acts respectively to certain specified maxima:

And whereas under the provisions of the Acts relating to the said dock undertaking all moneys borrowed by the Corporation for the purposes thereof are charged upon the borough fund and borough rate of the said city as well as on the revenue of the said undertaking and any deficiencies in such revenue are payable out of the said fund and rate:

And whereas owing to the great increase which has taken place since the outbreak of the war in the cost of carrying on the said undertaking the rates dues tolls and charges leviable and chargeable by the Corporation as aforesaid are insufficient

[*Price 3d.*]

A.D. 1919. to enable the said undertaking to be carried on efficiently without imposing upon the ratepayers of the said city an excessive burden by reason of the necessity of resorting to the said fund and rate to an undue extent:

And whereas it is anticipated that such increased cost as aforesaid will to a large extent continue permanently and it is expedient that the said rates dues tolls and charges should be increased as by this Act provided:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short and
collective
titles.

1. This Act may be cited as the Bristol Corporation Act 1919 and this Act and the Bristol Dock Acts 1848 to 1918 may be together cited as the Bristol Dock Acts 1848 to 1919.

Interpreta-
tion.

2. In this Act the following words and expressions have the several meanings hereby assigned to them unless there be something in the subject or context repugnant to such construction (that is to say):—

“The Corporation” means the lord mayor aldermen and burgesses of the city of Bristol;

“Dock undertaking” means and includes the undertaking carried on by the Corporation upon or in connexion with their City Docks Avonmouth Docks and Portishead Docks and the real and personal property lands railways piers works and appliances acquired appropriated or provided by or vested in them for the purposes thereof;

“The maximum rates” means the rates dues tolls and charges leviable or chargeable by the Corporation in connexion with their dock undertaking as limited by the Bristol Dock Acts 1848 to 1918 or some or one of them or by any Acts incorporated with or referred to in those Acts respectively;

“The existing Acts” means the Bristol Dock Acts 1848 to 1918 and the Acts incorporated with or referred to in those Acts respectively. A.D. 1919.
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3. As from the passing of this Act each of the maximum rates is hereby increased by an amount equal to fifty per centum thereof and the existing Acts shall be read and have effect accordingly. Increase of maximum rates.

4. Nothing in this Act shall interfere with or affect any rights of the Corporation with reference to the amount of any rates dues tolls or charges leviable or chargeable by them for which no maximum is prescribed by the existing Acts or any of them. Saving rights with reference to rates &c. for which no maximum is prescribed.

5. If the dock undertaking is acquired otherwise than by agreement by any public body or trustees the Corporation shall not be entitled to make any claim in respect of the powers conferred upon them by the section of this Act of which the marginal note is “Increase of maximum rates” Provided that nothing in this section shall prejudice the rights of any person entitled to any mortgage of or charge secured upon the undertaking or revenue of the Corporation or any part thereof. Provision in case of future purchase.

6. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Corporation out of the borough fund or borough rate of the city of Bristol. Costs of Act.

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